

# SUMMARY OF INCIDENT

|                                                     |                           |                                                             |  |
|-----------------------------------------------------|---------------------------|-------------------------------------------------------------|--|
| Investigator:<br><b>P.O. Diane Pollard</b>          |                           | Supervisor:<br><b>Captain Donald Cucchiaro</b>              |  |
| Date of Report:<br><b>04-25-86</b>                  | CCRB No.<br><b>514/86</b> | Classification:<br><b>Force</b>                             |  |
| Date and Time of Incident:<br><b>02-05-86; 1130</b> |                           | Date and Time Reported to C.C.R.B.<br><b>02-13-86; 1522</b> |  |
| Location of Incident:<br>§ 87(2)(b)                 |                           | Precinct<br><b>067</b>                                      |  |

|             |                     |        |              |       |          |
|-------------|---------------------|--------|--------------|-------|----------|
| COMPLAINANT | NAME                | STREET | CITY/BOROUGH | STATE | ZIP CODE |
|             | § 87(2)(b)          |        |              |       |          |
| VICTIM      | Same As Above (SAA) |        |              |       |          |
| ATTY        | Representing        |        |              |       |          |

|           |      |
|-----------|------|
| WITNESSES | None |
|-----------|------|

## MEMBERS OF THE SERVICE

| RANK | NAME             | SUBJECT | WITNESS | SHIELD NO. | CMD  | TAX REG. NO. | SERVICE TIME | AGE | ASSIGNMENT | RACE |
|------|------------------|---------|---------|------------|------|--------------|--------------|-----|------------|------|
| PO   | DiGirolamo, Paul | X       |         | 00000      | BSTF | 886836       | 1 yr.        | 23  | Patrol     | W    |
|      |                  |         |         |            |      |              |              |     |            |      |
|      |                  |         |         |            |      |              |              |     |            |      |
|      |                  |         |         |            |      |              |              |     |            |      |
|      |                  |         |         |            |      |              |              |     |            |      |
|      |                  |         |         |            |      |              |              |     |            |      |
|      |                  |         |         |            |      |              |              |     |            |      |
|      |                  |         |         |            |      |              |              |     |            |      |

|                                                                                                                           |            |                        |
|---------------------------------------------------------------------------------------------------------------------------|------------|------------------------|
| ALLEGATIONS                                                                                                               | SOURCE     | APPENDIX ENCLOSURE NO. |
| Officer pushed his nightstick up against throat, handcuffed and then hit him with another pair of handcuffs in his mouth. | § 87(2)(b) |                        |
|                                                                                                                           | - UF-245   | 1                      |

## COMMUNICATIONS TO BE ANSWERED:

|                                     |                                         |                                        |                                                |
|-------------------------------------|-----------------------------------------|----------------------------------------|------------------------------------------------|
| <input type="checkbox"/> P.C. Brief | <input type="checkbox"/> Mayor's Office | <input type="checkbox"/> I.A.D. Review | <input type="checkbox"/> Other (specify) _____ |
|-------------------------------------|-----------------------------------------|----------------------------------------|------------------------------------------------|

The complainant § 87(2)(b) filed this complaint on behalf of her son, § 87(2)(b). On 04-17-86 the complainant requested that her complaint be withdrawn and a withdrawal letter was forwarded to the complainant. The complainant's request to withdraw the complaint can be confirmed on Tape #CO 8890, Side 2, Index 3 and the withdrawal letter was returned bearing § 87(2)(b) signature.

## SUMMARY OF FINDINGS AND RECOMMENDATIONS

| ALLEGATION | CLASSIFICATION |   |   |   |
|------------|----------------|---|---|---|
|            | F              | A | D | E |
| A          | X              |   |   |   |

**FINDINGS AND RECOMMENDATIONS**

- Investigation closed - Complainant/Alleged Victim Withdrew

TOTAL ENCLOSURES

INVESTIGATOR'S SIGNATURE

SUPERVISOR'S SIGNATURE

10

P. Diene Pollara

Pt 910